



SUBJECT PROPERTY

5707 Scenic Ave

Seller

John R Alessio

Buyer

Benjamin Townsend &
Helen Severson

Purchase Price: \$317,000

Loan: Conventional – Empower FCU: Brennan Briggs 315.728.5342

Down Payment: \$20,000

Inspections: Waived

Bank Repairs: Buyer will cover up to \$1,000 in repairs, if necessary.

Closing: May 22nd , 2026. Flexible on closing if seller needs more or less time.

Contingencies: None!

Thank you for taking the time to consider our offer.

We look forward to hearing from you!

Listing Agent

Lynette Wilson
L. Wilson Realty
315.664.0026
lwilsonrealty@gmail.com

Selling Agent

Kaylie O'Connor
Kirnan Real Estate
315.439.2567
kaylie@kirnan.com

Emailed: **02 Mar 2026** PropertyFit: 12

Views: **1** Last Viewed: **02 Mar 2026**



MLS#:	R1655848	Single Family Residential	A-Active
	<u>5707 Scenic Ave</u>	VR Pricing: No	List Price: \$339,900
County:	Oswego	Zip: 13114	
Town/City:	Mexico	Pstl City: Mexico	
Area#:	Mexico-Village-353401	Cross St:	Main
Village:	Mexico-Village	Acres:	0.50
Subdivision:	Section 134	Lot SqFt:	21,627
TxMap#:	353401-134-010-0002-012-000-0000	Lot Front:	108
Addl TxMap#:		Lot Depth:	198
City Nghbrhd:		Lot Shape:	Rectangular
School Dist:	<u>Mexico Academy and Central</u>	Lot #:	12
High School:	<u>Mexico High</u>	SqFt [PubRec]:	2,184 [2,184]
Middle School:	<u>Mexico Middle</u>	AboveGrade Sq:	[2,184]
Elem School:		Fin Bsmnt SqFt:	[]
		SqFtSource:	Public Records
55+ Subdv:	No	Year Built:	1900
State:	NY - New York	Yr Blt Desc:	Existing
	Type of Sale: Normal	# Photo: 47	
	# Attach: 4		

Waterfront/Water

Waterfront: No	Footage:	Riparian Rgts: No
Name:	Island/Name: No	
Water Frontage Access:		
Water Related Features:		

Listing Office Information

Offc Name:	<u>L Wilson Realty (LWR01)</u>	Offc Lic#:	109934537
Offc Addr:	6468 Sharon Drive Auburn, NY 13021	Offc Phone:	<u>315-664-0026</u>
		Offc Fax:	
LA Name/ID:	<u>Lynette A. Wilson (WILSONLY)</u>	LA Cell #	<u>315-664-0026</u>
LA Email:	<u>lwilsonrealty@gmail.com</u>	LA Acpts Txt:	Yes
LA Dir Phone/Fax:	<u>315-664-0026</u>	LA License #:	37WI0985141 (NY)
Owner Name:	John R Alessio	Exclusions:	
Owner 2:		Seller Atty Email:	
Owner Addr:	4349 Church St	List Date:	01/01/2026
	Mexico, NY 13114	Expire Date:	
		DOM:	87
Seller Attorney:		Spc Conditions:	No
Listing Type:	Exclusive Right To Sell		
Service Type:	Listing Broker Only		
Negotiation w/:			
Lockbox Serial #:			
Show Appt/Desc:	3156640026; Online Showing Service		
Private Rmrks:	24 hr notice. The finished attic creates more living space its not included in the sqft.		
Unbranded VT:			
Branded VT:			
Aerial Drone Video:			
Virtual Tour 3D:			
Ad Headline:			
Ad Copy:			
Sub Board:	Rochester		
Attribution Contact:			

General Information

Style of Res:	Colonial, Victorian	Full Baths:	4	Bedrooms:	5	1st Flr:	Beds	Full	Half
Built By:		Half Baths:	0	Total Rooms:	13	2nd Flr:	1	2	0
Stories:	2.0	Tot Baths:	4.0	# Beds/Sept:		3rd Flr:	4	2	0
Constr Mtrls:	Brick					4th Flr:	0	0	0
Driveway:	Double Wide, Other - See Remarks					Bsmnt:	0	0	0
Garage:	2.0/Detached					Total:	5	4	0
Gar/Park Amn::									
Lot/Addtl Info:	Near Public Transportation, Neighborhood Street	Roof Descr:	Asphalt						
OGM Rsrvd:		Timber Rsrvd:							
Attic:	Finished, Full	Foundation:	Stone						
Basement:	Full								
Public Remarks:	In the quant village of Mexico, New York stands a stunning brick, Victorian home a testament to timeless elegance and character. freshly painted and soothing colors each room with warm and charm auspicious Eden Kitchen offers brand new stainless steel appliances granite countertops, cabinets, galore. High ceilings amplify the rooms. The first floor accommodate two full baths, a first floor bedroom, elegant dining room, living room, and library with hardwood floors throughout. ascend to the second floor with a beautiful stair case in the foyer or use the back stairs, the choice is yours a full kitchen and large bedrooms with two full baths perfect for guests all four bedrooms are generous in size. A brand new bonus room in the attic, renovated within the last year with a big storage room as well. The exterior is brick front porch, freshly painted side porch, fully fenced in yard with a patio and a huge two car detached garage Very easy for the children to walk to school. It's right in the back Mexico high and elementary school. The finished attic creates more living space its not included in the sqft.								

Directions:

Interior & Exterior Features

Add'l Rooms:	1st Floor Bedroom, Family Room, Foyer/Entry Hall, In-Law - see Remarks, Laundry-1st Floor, Library, Living Room, Other - See Remarks	Total FP: 2	# Artificial:	0
Add'l Interior Features:	Ceiling Fan, Circuit Breakers - Some, Sump Pump		# Gas:	0
			# Pellet:	0
			# Wood Burning:	0
			# Wood Stove:	0

Add'l Exterior Features:	Cable TV Available, Fully Fenced Yard, High Speed Internet, Patio, Porch - Open	# Coal:	0
Add'l Struct:		# Other:	2
Kitchn/Dining:	Eat-In, Formal Dining Room, Granite Counter	# Freestanding:	0
Appliances:	Dishwasher, Dryer, Oven/Range Gas, Refrigerator, Washer	# Not Per to Code:	0
Accessibility:			
Floors:	Ceramic-Some, Hardwood-Some, Vinyl-Luxury-Some		

Utilities Information

HVAC Type:	AC-Central, Forced Air	Sewer:	Sewer Connected
HVAC Fuel:	Gas	Water Resources:	Public Connected
Electric:		Insulation:	Unknown
Water Htr Fuel:	Gas	Septic Location:	
Emerg Backup:		Energy Equipment:	None
Type of Well:		Well Location:	
ENERGY STAR			
Qualified@:			
Grn Bld Vr Type:			
Grn Indoor Air Q:			
Grn Water Cnsrv:			

Financial Information

Possible Fin:	Cash, Conventional, FHA, VA	Equity:	\$339,900	Town/Cnty Tax:	\$2,472
1st Mtg Bal:	\$0			City/Vil Tax:	\$0
2nd Mrt Bal:	\$0			School Tax:	\$3,136
Tax Info:		Assess Val:	\$155,000	Total Taxes:	\$5,608
Escrow Agt/Bnk:	selling agent/selling agent	Spc Assess:	\$0	Lot Rent:	
HOA Pay Desc:	None	Original LP:	\$345,000	PriceChg Time:	02/25/2026
HOA Fee:				Manufacture Dt:	
HOA Amen:					
Mobl Hm Ser#:					
Manufacturer:					

Display & Occupancy Information

Possession:	At Closing						
Internet:	Yes	Inet St Adtrs:	Yes	IDX:	Yes	AVM:	Yes
						Blog:	Yes
						Realtor.com:	Yes
						MLS#:	R1655848

Kaylie O'Connor
NY Licensed R.E. Salesperson

300 Old Liverpool Rd. Liverpool, NY 13088
Kirnan Real Estate

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Mortgage Pre-Qualification Notice

March 02, 2026

Helen J Severson and Benjamin A Townsend

3 County Route 35

Fulton, NY 13069

Dear Helen J Severson and Benjamin A Townsend

Based on the preliminary financial details you have provided and our initial review under Empower Federal Credit Union's lending standards, you are pre-qualified for a mortgage loan based on the following:

Type of Loan: Conventional
Purchase Price: \$400,000.00
Down Payment: \$20,000.00
Program: 30 Year Fixed Rate

This is not a loan commitment. A formal commitment is subject to our standard lending policies, including written verification of all income and assets, validation of credit, and acceptable collateral meeting all credit union requirements.

Final terms, including loan amount, repayment period, interest rate and annual percentage rate will be determined after the completion of the application and underwriting process.

This prequalification expires 90 days after the date of this letter.

Thank you for choosing Empower FCU. We look forward to assisting you in achieving your homeownership goals.

Sincerely,

Brennan Briggs
(315) 728-5342
bbriggs@empowerfcu.com
NMLS #: 1813079



NMLS# 412348 ■ Federally Insured by NCUA ■ 800.462.5000 ■ empowerfcu.com
1 Member Way, Syracuse NY 13212

BENJAMIN A. TOWNSEND

521

50-8012/2213

3-29-26

Date

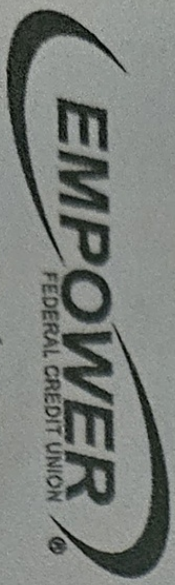
Pay to the Order of Kirnan Registrate

\$ 1500.00

One Thousand Five Hundred and 00/100 Dollars



Photo Safe Deposit™ Details on back



www.empowerfcu.com

For _____

[Signature]

⑆222380127⑆11710001384879⑈0521

MP AUTHORIZED SIGNATURE REQUIRED FOR DEPOSIT AND WITHDRAWAL. SIGNATURE MUST BE WRITTEN IN INK AND MUST BE LEGIBLE. SIGNATURE MUST BE WRITTEN ON THE FRONT OF THE CHECK. SIGNATURE MUST BE WRITTEN ON THE FRONT OF THE CHECK. SIGNATURE MUST BE WRITTEN ON THE FRONT OF THE CHECK.



CONTRACT TO PURCHASE CENTRAL NEW YORK INFORMATION SERVICE, INC.

THIS IS A CONTRACT FOR THE PURCHASE AND SALE OF REAL ESTATE. WHEN SIGNED, THIS DOCUMENT BECOMES A BINDING CONTRACT. IF NOT FULLY UNDERSTOOD, BUYER AND SELLER SHOULD SEEK THE ADVICE OF AN ATTORNEY.

MLS# R1655848. Buyer acknowledges that the information contained in the Multiple Listing Service ("MLS") is not guaranteed. Information contained in the MLS should be independently verified prior to the execution of the contract. The Greater Syracuse Association of REALTORS®, Inc. and the Central New York Information Service, Inc. are not responsible for the information contained in the MLS.

Compensation is not set by law or any REALTOR® Association or MLS and that compensation to BROKER is fully negotiable.

CONTRACT TO PURCHASE made as of the 29 day of March 2026

BETWEEN:

Buyer(s): Benjamin A Townsend Helen J Severson
 Buyer(s) Address : 3 County Route 35 Fulton NY 13069 (Hereinafter called "Buyer"),
 Seller(s): John R Alessio
 Seller(s) Address: 4349 Church St Mexico, NY 13114 (Hereinafter called "Seller").

The Parties agree as follows:

- PREMISES.** Seller shall sell and convey and Buyer shall purchase the real property, including all buildings, improvements and appurtenances thereto (collectively, the "Premises") known as (mailing address) 5707 Scenic Avenue Mexico NY 13114 in the town of Mexico County of Oswego State of New York, being a single family residence identified by Tax Map # 353401-134-010-0002-012-000-0000. This sale also includes all fixtures and articles of personal property now attached or appurtenant to the Premises including all plumbing, heating, lighting, bathroom and kitchen cabinets, mantels, doors, garage door openers and respective remotes, venetian blinds, shades, screens, curtain rods, awnings, storm windows, storm and screen doors, window boxes, mailbox, TV aerials, weather vanes, pumps, shrubbery, fencing, electronic fencing and transmitter and receiver, tool shed, built-in dishwasher, garbage disposal unit, built-in range and/or oven, built-in air conditioning equipment and installations, wall to wall carpeting and all other fixtures and fittings belonging to or used in the operation of the Premises and owned by Seller, and
Dishwasher, Dryer, Oven/Range Gas, Refrigerator, Washer, per MLS.

Excluded from this sale are any of the following items that may be on the Premises: furniture, household furnishings, rented water softeners, air conditioning units installed in windows, and

2. PURCHASE PRICE

Buyer agrees to pay Seller Three Hundred Seventeen Thousand
 (\$ 317,000.00) for the Premises, payable as follows:

Deposit:

\$ 1,500.00 in the form of a check to be held by selling agent until this contract is signed by Seller, at which time it shall become part of the Purchase Price and shall be deposited in a non-interest bearing account at selling agent Bank or returned to the Buyer if this contract is not accepted. Seller directs and authorizes the holder of the Deposit to return it to Buyer in the event of a bona fide failure of any contingency in this Contract, after deducting therefrom and paying to Seller sums payable to Seller pursuant to Section 2 "Financing".

Cash Balance:

\$ 18,500.00 cash on Closing (transfer of title). If Seller is a "foreign person" as defined in the Foreign Investment in Real Property Tax Act, Section 1445 of the Internal Revenue Code, as amended, and the Purchase Price exceeds \$300,000.00, Buyer shall withhold from the sums due Seller at Closing, any amounts mandated by Section 1445, as amended, or by any other federal, state or local statute, rule or regulation concerning the sale of real property by nonresidents of the United States of America.

Initial here: Buyer(s) [Signature] / Seller(s) /
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✕ Financing:

\$ 297,000.00 balance by Buyer obtaining, at Buyer's cost and expense, a conventional mortgage loan for a term of not less than thirty years. Buyer shall make good faith application for this mortgage within five days of the acceptance of this Contract. Buyer shall provide Seller with evidence of written approval of this mortgage, or reasonably satisfactory proof of financial ability to close, by 4/24/2026 (the "Mortgage Commitment Deadline") or Seller may cancel this Contract at Seller's option by Notice as provided for herein. Buyer authorizes the Lending Institution or Mortgage Banker or Broker to provide a copy of written mortgage commitment with pre-closing conditions to the listing agent and selling agent as set forth in this contract. If following a good faith application by Buyer, this mortgage cannot be obtained for reasons other than appraised value of the Premises as evidenced by a denial letter from a lender which regularly makes residential mortgage loans in the county where the Premises are located, this Contract may be terminated by either party and the Deposit returned to the Buyer, less the actual costs incurred by Seller in updating the Abstract of Title, survey and obtaining tax searches, not to exceed \$1,500.00, which costs shall be deducted from the Deposit.

☐ Mortgage Expenses:

Buyer agrees to pay all sums required by Buyer's lending institution. At closing, Seller agrees to credit Buyer \$ _____ toward actual Seller's Concessions (including only: loan origination or discount fees, mortgage application fee, mortgage tax, deed and mortgage recording fees, mortgage title insurance premium, appraisal fee, credit report and lender's attorney's fee, pre-payables and escrow) incurred by Buyer in this transaction.

☐ Assumption: \$ _____ balance by Buyer assuming and agreeing to pay an existing mortgage held by _____ with an approximate balance of said amount, payable monthly in the sum of \$ _____ (which includes principal, interest at _____%, taxes, and all insurance.) Buyer agrees to reimburse Seller for any existing escrow account. Seller ☐ **will** ☐ **will not** be released from liability thereunder.

☐ **Seller** ☐ **Buyer** shall pay all expenses charged by the holder of the existing mortgage in connection with the release of Seller from liability and/or the assumption of the mortgage by Buyer.

☐ Purchase Money Mortgage: The Buyer shall deliver a purchase money bond and _____ mortgage to the Seller at closing. This purchase money bond and mortgage shall be in the amount of \$ _____, shall be for a term of _____ years, shall bear interest at the rate of _____% per year, and shall be paid in monthly installments of principal and interest in the amount of \$ _____. Principal balance shall be all due and payable _____ years from the date of closing. The formal purchase money bond and mortgage documents shall be drawn by Seller's attorney and approved by Buyer's attorney. The mortgage shall include a clause that it is assumable only with the consent of the Seller and there shall be no penalty for prepayment of all or part of the unpaid balance of the note.

☐ Credit Report- Financial Ability: This contract is accepted by the Seller on the condition that Buyer furnish to Seller (1) a written credit report satisfactorily to Seller from an accredited credit reporting bureau at Buyer's expense, and (2) sufficient evidence to support Buyer's financial ability to make proposed mortgage payments (i.e., verification of employment, income tax returns, etc.). If Seller is not satisfied with Buyer's credit standing or with Buyer's financial ability to repay the mortgage, Seller may terminate this contract by giving Notice to the Buyer within _____ days after receipt of said credit report and evidence of financial ability and Buyer's deposit shall be returned.

3. **ACCEPTABLE FUNDS.** All money payable at closing under this Contract, unless otherwise specified, shall be paid in US funds by:
- (a) Cash, but not over \$500.00;
 - (b) Good certified check of Buyer drawn on, or official check issued by any bank, credit union (provided such check is drawn on a New York State bank), or savings and loan association having a banking office in the State of New York, payable to or endorsed by an original payee to the order of Seller, or as Seller may otherwise direct upon not less than 3 business days notice to Buyer;
 - (c) Uncertified check of Buyer up to the amount of \$1,000.00; or
 - (d) As otherwise agreed to in writing by Seller or Seller's attorney.

IMPORTANT NOTICE: Never trust wiring instructions sent via email. Cyber criminals are hacking email accounts and sending emails with fake wiring instructions. These emails are convincing and sophisticated. Always independently confirm wiring instructions in person or via a telephone call to a trusted and verified phone number. Never wire money without double-checking that the wiring instructions are correct.

Initial here: Buyer(s)  / _____ Seller(s) _____ / _____
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4. REAL ESTATE BROKERAGE FEE.

Listing Broker L Wilson Realty.

Cooperating or Selling Broker Kirnan Real Estate.

Seller shall pay Listing Broker per listing agreement or _____ % of Purchase Price or \$_____ (filled out by Listing Broker).

Seller shall pay Cooperating or Selling Broker 3.0 % of Purchase Price or \$_____ (filled out by Cooperating or Selling Broker).

Buyer shall pay Listing Broker _____ % of Purchase Price or \$_____.

Buyer shall pay Cooperating or Selling Broker _____ % of Purchase Price or \$_____.

☐ Check here if Buyer or Seller is paying any additional compensation to any of the Brokers in this transaction and is not disclosed in this section.

The Deposit shall be applied towards the payment of the compensation

5. SELLER'S REPRESENTATIONS. Seller represents and warrants to Buyer that:

(i) the personal property described in Section 1 is or at Closing will be paid for and owned by Seller free and clear of all liens and encumbrances; (ii) all plumbing (including septic systems, wells, and water pumps, if any), heating, air conditioning, electrical and mechanical systems and appliances will be in working order at the time of closing; (iii) Seller has the exclusive right, power and authority to sell, convey and transfer the Premises in accordance with the terms of this Contract; and (iv) at the time of closing, the Premises shall be free of containers of hazardous substances (as those terms are defined under any federal, state, or local laws, rules or regulations pertaining to environmental regulations, contamination or cleanup): paints; household cleaning products; gasoline and used oil.

6. TITLE DOCUMENTS. Seller shall deliver to Buyer no later than thirty (30) days from the contract date an up-to-date Abstract of Title prepared by a title or abstract company authorized to do business in this State (and made in accordance with Onondaga County Bar Association Standards, if the property is within Onondaga County), made from the records of the County Clerk's Office and commencing with a Warranty Deed conveying a 100% fee interest and recorded no later than 40 years prior to the date of the Contract. If the property is in Onondaga County, the Abstract of Title shall also certify to all easements, covenants and restrictions affecting the property recorded in 1945 or thereafter. Seller shall also provide a Tax Search covering County, City or other taxes for the applicable lien period, current property tax receipts and proof of payment of common charges, if any.

Seller shall also provide an up-to-date instrument survey showing all structures and improvements upon the property. Said survey will show all courses and distances based on the deed of record and be tied into a fixed point, such as a road intersection or a tract line where applicable, and be certified to the Buyer, its lender and the title company.

If the Premises is a condominium unit, in lieu of the above, Seller shall provide and deliver to buyer a copy of the existing Owner's or Mortgagee policy, if any, and stub search from date of policy, together with tax searches and tax receipts as hereinabove set forth.

In the event this Contract is terminated, the title documents shall be promptly returned to Seller or Seller's attorney by Buyer or Buyer's attorney. This provision shall survive the termination of the Contract

7. MARKETABLE TITLE. At Closing, Seller shall transfer to Buyer good and marketable title to the Premises, subject to building and use restrictions of record and governmental laws, regulations and/or ordinances (provided that the same are not violated), utility and/or drainage easements benefiting the Premises or permitted pursuant to FNMA/FHLMC title standards and taxes for local improvements not then due. Otherwise such title shall be free and clear from the rights of others unless set forth herein. Buyer has been advised that the Premises is, or may lie, in lands claimed by a Native American group and that fact shall not be raised as a defect in title.

8. CLOSING. The passing of title ("Closing") shall be held at the office of Buyer's lending institution or its attorney (or if none, at the office of the Seller's attorney) or as otherwise agreed, **on or about** 5/22/2026.

Initial here: Buyer(s)  / _____ Seller(s) _____ / _____
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9. **CLOSING DOCUMENTS.** At the time of Closing, Seller shall execute and deliver to Buyer a Warranty Deed with lien covenant together with such other documents as may be required by law or reasonably requested by Buyer's attorney or lending institution.
10. **ADJUSTMENTS.** Prepaid or unpaid charges including but not limited to rents and security deposits, taxes, water and common charges, garbage removal fees and fuel oil and propane shall be prorated and adjusted as of 11:59 pm the day before Closing or 11:59 at the end of the last day of possession by Seller, whichever is later. Fuel oil and propane in storage shall be adjusted at the average market price at the time of Closing.
11. **RECORDING EXPENSES.** Buyer shall pay the applicable mortgage tax and deed and mortgage recording fees. Seller shall pay for the recording fees for any mortgage discharge, gains tax affidavit, and any title affidavit required, as well as the transfer tax, and any real property gains tax applicable to the transaction. For residential real property, the Buyer shall pay a tax of 1% of the purchase price if the purchase price is \$1 million or more.
12. **PRE-CLOSING INSPECTION.** Buyer and their authorized agents shall have the right, at a reasonable time and upon reasonable notice to Seller, to inspect the Premises before closing. The purpose of this inspection is to establish that the Premises is in the same condition as it was as of the date of the Contract, subject to reasonable wear and tear, and that work required pursuant to the Contract, if any, has been completed. At the time of the pre-closing inspection Seller shall have all utilities in service that are required for the operation of heating, air conditioning, plumbing, security and electrical systems, unless otherwise agreed upon and provide working smoke and carbon monoxide detectors.
13. **POSSESSION.** Unless otherwise agreed upon, possession of the Premises shall be delivered at closing. At the time of possession, the Premises shall be in broom clean condition, vacant with the exception of agreed upon tenants, free of debris and all personal property not included in the sale. At Closing, Seller shall deliver to Buyer all garage door openers, keys for the Premises, and provide security codes for any security systems. Until Closing, Seller shall perform ordinary lawn and landscape maintenance and snow removal.
14. **ASSIGNMENT.** This Contract may not be assigned by Buyer without Seller's written consent.
15. **RISK OF LOSS.** The risk of loss or damage to the Premises by fire or other causes shall remain with Seller until Closing.
16. **MISCELLANEOUS.**
 - a. If Closing occurs during a tax year before a new tax rate is fixed, the apportionment of taxes shall be based upon the tax rate for the immediately preceding fiscal year applied to the latest assessed valuation.
 - b. Until delivery of possession, Seller shall be responsible for any damage to the Premises and any water and utility services.
 - c. Any errors or omissions in computation at Closing shall be corrected upon discovery.
 - d. Only the representations contained in Section 5(i) and the provisions contained in Sections 16(b) and 16(c) shall survive the Closing and transfer of title.
 - e. If Buyer's lender require repairs to the Premises, it is agreed that Seller shall pay 0 % of said repairs and Buyer shall pay 100 % of said repairs. If the cost of the repairs exceeds \$ 1,000.00 then either party may terminate this Contract and the Deposit shall be returned to Buyer, unless the other party agrees to pay the excess. Any reinspection fee shall be paid by ☐ Seller ☒ Buyer ☐ Split evenly by Seller and Buyer.
 - f. Pest inspection, if lender required, shall be paid by ☐ Seller ☒ Buyer ☐ Split evenly by Seller and Buyer.
17. **NEW YORK STATE AGRICULTURAL AND MARKET LAW** Section 310:

"It is the policy of this state and this community to conserve, protect and encourage the development and improvement of agricultural land for the production of food, and other products, and also for its natural and ecological value. This disclosure notice is to inform prospective residents that the property they are about to acquire lies partially or wholly within an agricultural district and that farming activities occur within the district. Such farming activities may include, but not be limited to, activities that cause noise, dust and odors. Prospective residents are also informed that the location of property within an agricultural district may impact the ability to access water and/or sewer services for such property under certain circumstances. Prospective purchasers are urged to contact the New York State Department of Agriculture and Markets to obtain additional information or clarification regarding their rights and obligations under article 25-AA of the Agriculture and Markets Law."

Premises ☐ are ☒ are not located partially or wholly within an agricultural district.

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18. **LEAD BASED PAINT CONTINGENCY ADDENDUM AND DISCLOSURE.** If the Premises was constructed prior to 1978, Buyer and Seller must complete and sign the Lead Based Paint Contingency Addendum and Disclosure Form, or this contract will not be binding.

19. **NEW YORK STATE REAL PROPERTY LAW** Section 242:

The above property ☒ does ☐ does not have utility electric service available to it. This property ☐ is ☒ is not subject to an electrical and/or gas utility surcharge. This type of surcharge is: _____. The purpose of the surcharge is _____. The amount of the surcharge is \$ _____. The surcharge is payable:

☐ Monthly, ☐ Annually, ☐ other basis _____.

The above property ☐ does ☒ does not have uncapped natural gas wells.

20. **SELLER'S PROPERTY CONDITION DISCLOSURE.** Except as provided in Section 463 of the Real Property Law, Seller shall deliver a signed Property Condition Disclosure Statement to the Buyer or Buyers Agent prior to the signing by the Buyer of a binding contract of sale.

21. ☐ **A. HOME INSPECTION.** This Contract is contingent upon the Buyer obtaining, at Buyer's expense, a satisfactory Home Inspection by a New York State Licensed Home Inspector, Architect or Engineer within _____ calendar days of the last of the Buyer and Seller to accept the Contract ("Inspection Approval Period"). This contingency shall be deemed waived unless Notice that the Home Inspection is unsatisfactory is received within the "Inspection Approval Period". If the Home Inspection is deemed unsatisfactory, Buyer and Seller have _____ calendar days to reach an acceptable agreement. Failure to do so terminates the contract. If the Contract is deemed terminated, the deposit shall be returned to the Buyer. At the time of the home inspection Seller shall have all utilities in service that are required for the operation of heating, air conditioning, plumbing, security and electrical systems, unless otherwise agreed upon. The Buyer will supply to the Seller, if requested, a copy of the Home Inspection Report.

☒ **B. HOME INSPECTION WAIVED.** Buyer(s) Initial:  / _____. The Buyer has been informed that it is in its best interest to make the Contract contingent upon a Home Inspection. The Buyer waives the right to said Inspection.

22. ☐ **A. RADON TEST.** This Contract is contingent upon the Buyer obtaining, at Buyer's expense, a Radon test indicating the Radon level to be the EPA standard of less than 4.0 pC/L, within _____ calendar days of the last of the Buyer and Seller to accept the Contract ("Inspection Approval Period"). This contingency shall be deemed waived unless Notice that the Radon levels exceed the EPA standards is received within the "Inspection Approval Period". If notice is given that Radon levels exceed EPA Standards, Buyer and Seller have _____ calendar days to reach an acceptable agreement. Failure to do so terminates the Contract. If the Contract is deemed terminated, the deposit shall be returned to the Buyer. The Buyer will supply to the Seller, if requested, a copy of the Radon test.

☒ **B. RADON TEST WAIVED.** Buyer(s) Initial:  / _____. The Buyer has been informed that it is in its best interest to make the Contract contingent upon a Radon test. The Buyer waives the right to said test.

23. ☐ **SUBJECT TO SALE OF BUYER'S PROPERTY (RECALL PROVISION).**

CONTINGENCY CLAUSE. This Contract to Purchase is contingent upon Buyer entering into a contingency free Contract to Purchase (financing contingency excepted) for the property now owned by Buyer at _____ on or before _____ p.m. _____. If Buyer is unable to successfully enter into such Contract to Purchase or remove such contingency by that date and time, then this contract, unless extended by mutual written agreement, shall be terminated and the deposit shall be returned to the Buyer.

RECALL CLAUSE. It is understood that the Seller may continue to show the Premises to prospective buyers. Should a bona fide written offer be accepted by Seller, subject to this contract, Buyer agrees to remove the above contingency clause within _____ hours of Notice or this contract shall be deemed terminated. Termination of this contract shall be automatic _____ hours from the time of Notice unless Notice of removal of contingency has been delivered by that time.

It is further understood and agreed that if Buyer removes the above contingency clause, Buyer agrees to:

- ☐ provide proof reasonably satisfactory to Seller of financial ability to close the transaction, and
- ☐ submit an additional deposit of \$ _____, which shall become part of the purchase price. All deposits shall be non-refundable unless title does not pass by reason of the fault of the Seller.

Initial here: Buyer(s)  / _____ Seller(s) _____ / _____
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24. ☐ **SUBJECT TO CLOSING OF BUYER'S PROPERTY PURSUANT TO EXISTING CONTRACT.**

This Contract to Purchase is subject to transfer of title pursuant to an existing contract on Buyer's property located at _____ on or before _____. If said transfer is not completed by that time, Seller shall within 72 hours either (1) return to the Buyer any deposits, and this contract shall thereupon terminate, or, (2) extend this contract for an additional _____ calendar days with closing and possession dates to be adjusted accordingly.

25. **WELL/SEPTIC TESTING.** In the event the Premises are serviced by a private well or spring, or septic system, this Contract is subject to Seller, at Seller's expense, providing to the Buyer at least 15 days prior to closing

- A septic dye test evidencing no leakage, or such test as may otherwise be required by the County Health Department or Municipality
- A well test showing a minimum flow rate of 3 gallon per minute for 2 hours, or such test as may otherwise be required by Buyer's lending institution
- A water quality test complying with the minimum standards for the lender and/or County Health Department or Municipality.

Seller shall provide all test results to Buyer. If any test results do not pass, Seller may repair/replace the system(s) at Seller's expense. However, if Seller is unwilling to repair/replace the system(s), Seller shall give Notice to Buyer within 3 days of receipt of failed test. Within 7 days of receipt of Notice from Seller, Buyer may terminate the contract on Notice. In the event Buyer terminates the contract, the deposit shall be returned to the Buyer.

26. ☐ **OTHER CONTINGENCY.** It is understood and agreed that this Contract is made contingent upon:

27. **NOTICE.** Any notice required under this Contract shall be in writing (the "Notice"). Service of such Notice shall be given to the other party, or that party's attorney or real estate agent, and shall be personally delivered, transmitted by facsimile, emailed, delivered by overnight courier or by certified mail.

28. **PERSONS BOUND.** This document and the addenda annexed hereto, when signed by both parties, shall be a binding contract. This Contract contains the entire agreement of the parties and may not be changed or modified orally but only in writing by all parties to be bound. There are no warranties or representations except as set forth in this Contract, notwithstanding any other statements or documents. In the event that a dispute arises or a breach occurs and a lawsuit is commenced by or against any one of the parties or by or against any Broker involved in this transaction, the prevailing party to such lawsuit shall be entitled to recover the costs of litigation, including but not limited to reasonable attorneys fees.

29. **HOME EQUITY THEFT PREVENTION ACT.**

A. Buyer ☒ intends ☐ does not intend to use the Premises as Buyer's primary residence.

B. If Buyer **DOES NOT** intend to use the Premises as Buyer's primary residence, then Seller represents that premises ☐ is ☐ is not in foreclosure (lis pendens filed or property is on active tax lien sale list) **OR** that Seller ☐ is ☐ is not in default for two or more months on Seller's mortgage payments and the contract includes a reconveyance arrangement.

If the Premises is not to be used as Buyer's primary residence **AND** if the Seller is in foreclosure **OR** in default on the mortgage payments for two or more months and there is a reconveyance arrangement, then the **HOME EQUITY THEFT PREVENTION ACT ADDENDUM** is to be executed by the parties hereto, which addendum shall be made a part of this Contract as if the same were to be set forth herein at length.

Initial here: Buyer(s)  / _____ Seller(s) _____ / _____
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THE FOLLOWING ADDENDA ARE INTENDED TO BE ANNEXED HERETO AND FORM A PART OF THIS CONTRACT:

- ☐ Disclosure Regarding Real Estate Agency Relationships; ☒ Seller's Disclosure of Property Condition;
☐ Contract Addendum; ☒ Lead Based Paint Addendum; ☐ Required FHA/VA Addendum
☒ Other: Cover Page, EMD, Pre approval

This Contract is contingent upon approval by attorneys for Seller and Buyer. If either party does not identify an attorney and deliver a complete copy of this fully executed Contract to said attorney by two business days following execution of this Contract by all parties, this attorney approval contingency shall be deemed waived by that party. Each attorney shall have three business days exclusive of the day of receipt of a complete copy of this fully executed Contract within which to provide Notice of approval or disapproval of the Contract (the Approval Period). If party's attorney disapproves this Contract before the end of the Approval Period, this Contract is deemed terminated and all deposits shall be returned. A conditional approval shall be deemed a disapproval unless assented to by the other party's attorney within three business days of receipt of the conditional approval. Written communication by attorneys pursuant to this provision shall bind their respective clients. If a party's attorney neither approves, conditionally approves nor disapproves this Contract by the end of the Approval Period, this approval contingency is deemed waived by that party.

The parties hereto have executed this agreement as of the date and year first above written.

	03/29/2026		
Buyer <u>Benjamin A Townsend</u>	Date	Seller <u>John R Alessio</u>	Date
Buyer <u>Helen J Severson</u>	Date	Seller	Date

Name of Buyer's Attorney	Name of Seller's Attorney
Attorney Phone Number & Fax Number	Attorney Phone Number & Fax Number
Attorney Email Address <u>Kirnan Real Estate</u>	Attorney Email Address <u>L Wilson Realty</u>
Selling Company <u>109933781</u>	Listing Company <u>109934537</u>
Selling Brokerage License # <u>Kaylie O'Connor</u>	Listing Brokerage License # <u>Lynette A. Wilson</u>
Selling Agent <u>10401249090</u>	Listing Agent <u>37WI0985141</u>
Selling Agent License # <u>315-457-3356</u> <u>315-457-3919</u>	Listing Agent License # <u>315-664-0026</u>
Selling Company Phone Number & Fax Number <u>kaylie@kirnan.com</u>	Listing Company Phone Number & Fax Number <u>lwilsonrealty@gmail.com</u>
Selling Agent Email Address	Listing Agent Email Address

This form has been prepared for the sole use of the Central New York Information Service, Inc. and its members. The Central New York Information Service, Inc., its members and employees, assume no responsibility if this form fails to protect the interests of any party. Each party should secure its own legal, tax, financial or other advice.

Initial here: Buyer(s)  / _____ Seller(s) _____ / _____
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Department of State Licensing Services

New York State
Department of State
Division of Licensing Services
 P.O. Box 22001
 Albany, NY 12201-2001
 Customer Service: (518) 474-4429
<https://dos.ny.gov>

Property Condition Disclosure Statement

Name of Seller or Sellers: John Alessio

Property Address: 5707 Scenic ave Mexico NY 13452

General Instructions:

The Property Condition Disclosure Act requires the seller of residential real property to cause this disclosure statement or a copy of thereof to be delivered to a buyer or buyer's agent prior to the signing by the buyer of a binding contract of sale.

Purpose of Statement:

This is a statement of certain conditions and information concerning the property known to the seller. This Disclosure Statement is not a warranty of any kind by the seller or by any agent representing the seller in this transaction. It is not a substitute for any inspections or tests and the buyer is encouraged to obtain his or her own independent professional inspections and environmental tests and also is encouraged to check public records pertaining to the property.

A knowingly false or incomplete statement by the seller on this form may subject the seller to claims by the buyer prior to or after the transfer of title.

"Residential real property" means real property improved by a one to four family dwelling used or occupied, or intended to be used or occupied, wholly or partly, as the home or residence of one or more persons, but shall not refer to (a) unimproved real property upon which such dwellings are to be constructed or (b) condominium units or cooperative apartments or (c) property on a homeowners' association that is not owned in fee simple by the seller.

Instruction to the Seller:

- Answer all questions based upon your actual knowledge.
- Attach additional pages with your signature if additional space is required.
- Complete this form yourself.
- If some items do not apply to your property, check "NA" (Non-applicable). If you do not know the answer check "Unkn" (Unknown).

Seller's Statement:

The seller makes the following representations to the buyer based upon the seller's actual knowledge at the time of signing this document. The seller authorized his or her agent, if any, to provide a copy of this statement to a prospective buyer of the residential real property. The following are representations made by the seller and are not the representations of the seller's agent.

GENERAL INFORMATION

- How long have you owned the property? 1.5 years
- How long have you occupied the property? 1.5 years
- What is the age of the structure or structures? 1850
Note to buyer – If the structure was built before 1978 you are encouraged to investigate for the presence of lead based paint.
- Does anybody other than yourself have a lease, easement or any other right to use or occupy any part of your property other than those stated in documents available in the public record, such as rights to use a road or path or cut trees or crops? ☐ Yes ☒ No ☐ Unkn ☐ NA
- Does anybody else claim to own any part of your property? *If yes, explain below* ☐ Yes ☒ No ☐ Unkn ☐ NA

- Has anyone denied you access to the property or made a formal legal claim challenging your title to the property? *If yes, explain below* ☐ Yes ☒ No ☐ Unkn ☐ NA

Property Condition Disclosure Statement

7. Are there any features of the property shared in common with adjoining landowners or a home-owner's association, such as walls, fences or driveways? *If yes, describe below* ☐ Yes ☒ No ☐ Unkn ☐ NA

8. Are there any electric or gas utility surcharges for line extensions, special assessments or home-owner or other association fees that apply to the property? *If yes, describe below* ☐ Yes ☒ No ☐ Unkn ☐ NA

9. Are there certificates of occupancy related to the property? *If no, explain below* ☐ Yes ☒ No ☐ Unkn ☐ NA

ENVIRONMENTAL

Note to Seller:

In this section, you will be asked questions regarding petroleum products and hazardous or toxic substances that you know to have been spilled, leaked or otherwise been released on the property or from the property onto any other property. Petroleum products may include, but are not limited to, gasoline, diesel fuel, home heating fuel, and lubricants. Hazardous or toxic substances are products or other material that could pose short or long-term danger to personal health or the environment if they are not properly disposed of, applied or stored. These include, but are not limited to, fertilizers, pesticides and insecticides, paint including paint thinner, varnish remover and wood preservatives, treated wood, construction materials such as asphalt and roofing materials, antifreeze and other automotive products, batteries, cleaning solvents including septic tank cleaners, household cleaners, pool chemicals and products containing mercury and lead and indoor mold.

Note to Buyer:

If contamination of this property from petroleum products and/or hazardous or toxic substances is a concern to you, you are urged to consider soil and groundwater testing of this property.

10. Is any or all of the property located in a Federal Emergency Management Agency (FEMA) designated floodplain? *If yes, explain below* ☐ Yes ☒ No ☐ Unkn ☐ NA

11. Is any or all of the property located wholly or partially in the Special Flood Hazard Area ("SFHA"; "100-year floodplain") according to the Federal Emergency Management Agency's (FEMA's) current flood insurance rate maps for your area? *If yes, explain below*..... ☐ Yes ☒ No ☐ Unkn ☐ NA

12. Is any or all of the property located wholly or partially in a Moderate Risk Flood Hazard Area ("500-year floodplain") according to FEMA's current flood insurance rate maps for your area? *If yes, explain below*..... ☐ Yes ☒ No ☐ Unkn ☐ NA

13. Is the property subject to any requirement under federal law to obtain and maintain flood insurance on the property? *If yes, explain below*..... ☐ Yes ☒ No ☐ Unkn ☐ NA
- Homes in the Special Flood Hazard Area, also known as High Risk Flood Zones, on FEMA's flood insurance rate maps with mortgages from federally regulated or insured lenders are required to obtain and maintain flood insurance. Even when not required, FEMA encourages homeowners in high risk, moderate risk, and low risk flood zones to purchase flood insurance that covers the structure(s) and the personal property within the structure(s). Also note that homes in coastal areas may be subject to increased risk of flooding over time due to projected sea level rise and increased extreme storms caused by climate change which may not be reflected in current flood insurance rate maps.
- _____
- _____

Property Condition Disclosure Statement

14. Have you ever received assistance, or are you aware of any previous owners receiving assistance, from the Federal Emergency Management Agency (FEMA), the U.S. Small Business Administration (SBA), or any other federal disaster flood assistance for flood damage to the property? *If yes, explain below*..... ☐ Yes ☒ No ☐ Unkn ☐ NA
- For properties that have received federal disaster assistance, the requirement to obtain flood insurance passes down to all future owners. Failure to obtain and maintain flood insurance can result in an individual being ineligible for future assistance.
-
15. Is there flood insurance on the property? *If yes, attach a copy of the policy*..... ☐ Yes ☒ No ☐ Unkn ☐ NA
- A standard homeowner's insurance policy typically does not cover flood damage. You are encouraged to examine your policy to determine whether you are covered.
16. Is there a FEMA elevation certificate available for the property? *If yes, attach a copy of the certificate*..... ☐ Yes ☒ No ☐ Unkn ☐ NA
- An elevation certificate is a FEMA form, completed by a licensed surveyor or engineer. The form provides critical information about the flood risk of the property and is used by flood insurance providers under the National Flood Insurance Program (NFIP) to help determine the appropriate flood insurance rating for the property. A buyer may be able to use the elevation certificate from a previous owner for their flood insurance policy.
17. Have you ever filed a claim for flood damage to the property with any insurance provider, including the National Flood Insurance Program (NFIP)? *If yes, explain below*..... ☐ Yes ☒ No ☐ Unkn ☐ NA
-
18. Is any or all of the property located in a designated wetland? *If yes, explain below* ☐ Yes ☒ No ☐ Unkn ☐ NA
-
19. Is the property located in an agricultural district? *If yes, explain below* ☐ Yes ☒ No ☐ Unkn ☐ NA
-
20. Was the property ever the site of a landfill? *If yes, explain below* ☐ Yes ☐ No ☒ Unkn ☐ NA
-
21. Are there or have there ever been fuel storage tanks above or below the ground on the property? ☐ Yes ☐ No ☒ Unkn ☐ NA
- If yes, are they currently in use? ☐ Yes ☐ No ☒ Unkn ☐ NA
 - Location(s)..... ☒
 - Are they leaking or have they ever leaked? *If yes, explain below* ☐ Yes ☐ No ☒ Unkn ☐ NA
-
22. Is there asbestos in the structure? *If yes, state location or locations below* ☐ Yes ☐ No ☒ Unkn ☐ NA
-
23. Is lead plumbing present? *If yes, state location or locations below* ☐ Yes ☐ No ☒ Unkn ☐ NA
-
24. Has a radon test been done? *If yes, attach a copy of the report* ☐ Yes ☒ No ☐ Unkn ☐ NA
-

Property Condition Disclosure Statement

25. Has motor fuel, motor oil, home heating fuel, lubricating oil or any other petroleum product, methane gas, or any hazardous or toxic substance spilled, leaked or otherwise been released on the property or from the property onto any other property? *If yes, describe below* ☐ Yes ☐ No ☒ Unkn ☐ NA
26. Has the property been tested for the presence of motor fuel, motor oil, home heating fuel, lubricating oil, or any other petroleum product, methane gas, or any hazardous or toxic substance? *If yes, attach report(s)* ☐ Yes ☐ No ☒ Unkn ☐ NA
27. Has the property been tested for indoor mold? *If yes, attach a copy of the report*..... ☐ Yes ☒ No ☐ Unkn

STRUCTURAL

28. Is there any rot or water damage to the structure or structures? *If yes, explain below* ☐ Yes ☒ No ☐ Unkn ☐ NA
29. Is there any fire or smoke damage to the structure or structures? *If yes, explain below* ☐ Yes ☒ No ☐ Unkn ☐ NA
30. Is there any termite, insect, rodent or pest infestation or damage? *If yes, explain below* ☐ Yes ☒ No ☐ Unkn ☐ NA
31. Has the property been tested for termite, insect, rodent or pest infestation or damage? *If yes, please attach report(s)* ☐ Yes ☒ No ☐ Unkn ☐ NA
32. What is the type of roof/roof covering (slate, asphalt, other)? Asphalt
- Any known material defects? unknown
 - How old is the roof? unknown
 - Is there a transferable warranty on the roof in effect now? *If yes, explain below* ☐ Yes ☒ No ☐ Unkn ☐ NA
33. Are there any known material defects in any of the following structural systems: footings, beams, girders, lintels, columns or partitions? *If yes, explain below* ☐ Yes ☒ No ☐ Unkn ☐ NA

MECHANICAL SYSTEMS AND SERVICES

34. What is the water source? (*Check all that apply*) ☐ Well ☐ Private ☒ Municipal
- ☐ Other: _____
- If municipal, is it metered? ☒ Yes ☐ No ☐ Unkn ☐ NA

Property Condition Disclosure Statement

35. Has the water quality and/or flow rate been tested? *If yes, describe below* ☐ Yes ☐ No ☐ Unkn ☒ NA

36. What is the type of sewage system? *(Check all that apply)* ☒ Public sewer ☐ Private sewer

☐ Septic ☐ Cesspool

- If septic or cesspool, age? _____
- Date last pumped? _____
- Frequency of pumping? _____
- Any known material defects? *If yes, explain below* (More information on “septic system operation and maintenance” can be found on the NYS Department of Health website in the informational health pamphlet made available by the Department of Health pursuant to section 396-s of NYS general business law.) ☐ Yes ☐ No ☐ Unkn ☒ NA

37. Who is your electric service provider? **National Grid**

- What is the amperage? **200**
- Does it have circuit breakers or fuses? **breakers**
- Private or public poles? **public**
- Any known material defects? *If yes, explain below* ☐ Yes ☒ No ☐ Unkn ☐ NA

38. Are there any flooding, drainage or grading problems that resulted in standing water on any portion of the property? *If yes, state locations and explain below* ☐ Yes ☒ No ☐ Unkn ☐ NA

39. Has the structure(s) experienced any water penetration or damage due to seepage or a natural flood event, such as from heavy rainfall, coastal storm surge, tidal inundation or river overflow? *If yes, explain below* ☐ Yes ☒ No ☐ Unkn ☐ NA

Property Condition Disclosure Statement

Are there any known material defects in any of the following? If yes, explain below. Use additional sheets if necessary.

40. Plumbing system?	☐ Yes	☒ No	☐ Unkn	☐ NA
41. Security system?	☐ Yes	☐ No	☐ Unkn	☒ NA
42. Carbon monoxide detector?	☐ Yes	☒ No	☐ Unkn	☐ NA
43. Smoke detector?	☐ Yes	☒ No	☐ Unkn	☐ NA
44. Fire sprinkler system?	☐ Yes	☐ No	☐ Unkn	☒ NA
45. Sump pump?	☐ Yes	☒ No	☐ Unkn	☐ NA
46. Foundation/slab?	☐ Yes	☒ No	☐ Unkn	☐ NA
47. Interior walls/ceilings?	☐ Yes	☒ No	☐ Unkn	☐ NA
48. Exterior walls or siding?	☐ Yes	☒ No	☐ Unkn	☐ NA
49. Floors?	☐ Yes	☒ No	☐ Unkn	☐ NA
50. Chimney/fireplace or stove?	☐ Yes	☒ No	☐ Unkn	☐ NA
51. Patio/deck?	☐ Yes	☒ No	☐ Unkn	☐ NA
52. Driveway?	☐ Yes	☒ No	☐ Unkn	☐ NA
53. Air conditioner?	☐ Yes	☒ No	☐ Unkn	☐ NA
54. Heating system?	☐ Yes	☒ No	☐ Unkn	☐ NA
55. Hot water heater?	☐ Yes	☒ No	☐ Unkn	☐ NA

56. The property is located in the following school district Mexico

Note: Buyer is encouraged to check public records concerning the property (e.g. tax records and wetland and FEMA’s current flood insurance rate maps and elevation certificates).
The seller should use this area to further explain any item above. If necessary, attach additional pages and indicate here the number of additional pages attached.

Property Condition Disclosure Statement

SELLER'S CERTIFICATION:

Seller certifies that the information in this Property Condition Disclosure Statement is true and complete to the seller's actual knowledge as of the date signed by the seller. If a seller of residential real property acquires knowledge which renders materially inaccurate a Property Condition Disclosure Statement provided previously, the seller shall deliver a revised Property Condition Disclosure Statement to the buyer as soon as practicable. In no event, however, shall a seller be required to provide a revised Property Condition Disclosure Statement after the transfer of title from the seller to the buyer or occupancy by the buyer, whichever is earlier.

Seller's Signature

X  _____

Date 12/29/25 _____

Seller's Signature

X _____

Date _____

BUYER'S ACKNOWLEDGMENT:

Buyer acknowledges receipt of a copy of this statement and buyer understands that this information is a statement of certain conditions and information concerning the property known to the seller. It is not a warranty of any kind by the seller or seller's agent and is not a substitute for any home, pest, radon or other inspections or testing of the property or inspection of the public records.

Buyer's Signature

X  _____

Date 03/29/26 _____

Buyer's Signature

X _____

Date _____



Disclosure of Information on Lead-Based Paint and/or Lead-Based Paint Hazards for the Purchase of Property

Lead Warning statement: Every purchaser of any interest in residential real property on which a residential dwelling was built prior to 1978 is notified that such property may present exposure to lead from lead-based paint that may place young children at risk of developing lead poisoning. Lead poisoning in young children may produce permanent neurological damage, including learning disabilities, reduced intelligence quotient, behavioral problems, and impaired memory. Lead poisoning also poses a particular risk to pregnant women. The seller of any interest in residential real property is required to provide the buyer with any information on lead-based paint hazards from risk assessments or inspections in the seller's possession and notify the buyer of any known lead-based paint hazards. A risk assessment or inspection for possible lead-based paint hazards is recommended prior to purchase.

Seller's Disclosure:

(a) Presence of lead-based paint and/or lead based paint hazards (check (i) or (ii) below)

- ☐ (i) Known lead-based paint and/or lead based paint hazards are present in the housing (explain)
- ☒ (ii) Seller has no knowledge of lead-based paint and/or lead based paint hazards in the housing.

(b) Records and reports available to the seller (check (i) or (ii) below)

- ☐ (i) Seller has provided the purchaser with all the available records and reports pertaining to lead-based paint and /or lead-based paint hazards in the housing (list documents below)
- ☒ (ii) Seller has no reports or records pertaining to lead-based paint and/or lead-based paint hazards in the housing.

Purchaser's Acknowledgement (initial)

(c) Records and reports supplied by the seller (initial (i) or (ii) below)

(i) [Signature] Purchaser has received copies of all information listed above in (b)(i).

(ii) [Signature] Seller provided no reports or records pertaining to lead-based paint and/or lead-based paint hazards in the housing.

(d) [Signature] Purchaser has received the pamphlet **PROTECT YOUR FAMILY FROM LEAD IN YOUR HOME.**

(e) Purchaser has (initial (i) or (ii) below):

- (i) _____ Received a 10 day opportunity (or mutually agreed upon period) to conduct a risk assessment or inspection for the presence of lead-based paint and/or lead based paint hazards; or
- (ii) ☒ _____ Waived the opportunity to conduct a risk assessment or inspection for the presence of lead-based paint and/or lead based paint hazards.

Agent's acknowledgement (initial)

(f) _____ Agent has informed the seller of the seller's obligations under 42 U.S.C. 4852d and is aware of his/her responsibility to ensure compliance.

Certificate of accuracy

The following parties have reviewed the information above and certify, to the best of their knowledge, that the information they have provided is true and accurate.

<u>John Alessio</u> Authentisign Seller <u>12/29/25</u> Date	<u>Benjamin A Townsend</u> Authentisign Purchaser <u>03/29/26</u> Date
Seller Date	Purchaser Date
Agent <u>5707 Scenic Ave Mexico NY</u> Property Address Date	<u>Kaylie O'Connor</u> Authentisign Agent <u>03/29/26</u> Date



Kirnan Real Estate, Inc Notice & Disclosure Form

Kirnan Real Estate, Inc is a Real Estate Broker licensed in the State of New York, with its principle office located at 300 Old Liverpool Rd, Liverpool, NY 13088.

Equal Opportunity Policy Statement:

It is the policy of this Company to comply with the New York State and United States Fair Housing Laws. These laws require that the type of service provided to a purchaser or seller shall not be influenced by the purchaser's or seller's race, color, religion, sex, disability, marital status, age, national origin, sexual orientation, gender identity, military status, source of income, handicap, familial status, or such other classes as may be determined by law to be protected classes. Our agents are not authorized to discuss with any client or customer the racial composition of neighborhoods or metropolitan areas, further, our agents are not permitted to select houses or other property for clients on the basis of race or composition of the neighborhood. If at any time in your relationship with this firm you believe that you may have not received equal service because of your protected class, we encourage you to notify our office at 315-457-3356. We do not expect there will be any problems but we would like to opportunity to correct any problems that you feel might exist.

Business Relationship:

We wish to inform you, the Purchasers and/or Sellers of real estate, that there exists a business relationship between Kirnan Real Estate, Inc. and the following companies: Movement Mortgage, LLC. Kirnan Real Estate, Inc. has a contractual relationship to provide advertising services to Movement Mortgage, LLC. This advertising agreement does not constitute, and is not intended to constitute, Kirnan Real Estate, Inc's endorsement of any of the services, products, or service providers of Movement Mortgage, LLC. No fees of any type are paid to Kirnan Real Estate, Inc. in connection with a mortgage transaction. Consumers and prospective consumers are not required to utilize Movement Mortgage, LLC.

There are frequently other lenders available with similar services to those of Movement Mortgage, LLC. Consumers and prospective consumers are encouraged to shop around to determine that they are receiving the best services and the best rate for these services. More information can be found at www.consumerfinance.gov/owning-a-home.

Property Condition Disclosure Statement (Real Property Law section 462(2):

For Sellers and Buyers:

If you fail to deliver a property condition disclosure statement to the buyer prior to the buyer signing a binding contract of sale, the buyer may be entitled to a credit in the amount of \$500.00 against the purchase price of the property upon transfer of title. If the seller is required to deliver a property condition disclosure statement to you and fails to do so prior to signing a binding contract of sale, you are entitled to receive a credit in the amount of \$500 against the purchase price of the property upon transfer of title.

Home Inspection:

Kirnan Real Estate and its Agents would like to inform you, effective December 31, 2005, that all persons engaged in performing home inspections of residential buildings for compensations must be licensed in New York State. We recommend you employ a licensed home inspector and to not compensate an unlicensed home inspector. If you choose to employ and unlicensed home inspector, it is agreed and understood you will hold Kirnan Real Estate, its Agents and Employees harmless of any actions or recommendations of the unlicensed home inspector or their report.

Commission Payment Authorization:

New York State real property law considers the real estate commission due at the time of the "meeting of the minds" which would be at the time a Purchase Offer or Lease is accepted. However, most real estate companies, including Kirnan Real Estate, Inc, defer the actual collection of this earned commission until the closing of the sale or lease execution. In consideration of this deferred commission collection, we request your authorization for collection of the commission at closing or lease execution from the proceeds or a certified check.

I have received a copy of this notice and disclosure form:

Name: Benjamin A Townsend

Authentisign

Benjamin A Townsend

03/29/26

Signature

Date

Name: _____

Signature

Date



Division of Licensing Services

New York State
Department of State
Division of Licensing Services
P.O. Box 22001
Albany, NY 12201-2001
Customer Service: (518) 474-4429
<https://dos.ny.gov>

New York State Disclosure Form for Buyer and Seller

THIS IS NOT A CONTRACT

New York State law requires real estate licensees who are acting as agents of buyers or sellers of property to advise the potential buyers or sellers with whom they work of the nature of their agency relationship and the rights and obligations it creates. This disclosure will help you to make informed choices about your relationship with the real estate broker and its sales agents.

Throughout the transaction you may receive more than one disclosure form. The law may require each agent assisting in the transaction to present you with this disclosure form. A real estate agent is a person qualified to advise about real estate.

If you need legal, tax or other advice, consult with a professional in that field.

Disclosure Regarding Real Estate Agency Relationships

Seller's Agent

A seller's agent is an agent who is engaged by a seller to represent the seller's interests. The seller's agent does this by securing a buyer for the seller's home at a price and on terms acceptable to the seller. A seller's agent has, without limitation, the following fiduciary duties to the seller: reasonable care, undivided loyalty, confidentiality, full disclosure, obedience and duty to account. A seller's agent does not represent the interests of the buyer. The obligations of a seller's agent are also subject to any specific provisions set forth in an agreement between the agent and the seller. In dealings with the buyer, a seller's agent should (a) exercise reasonable skill and care in performance of the agent's duties; (b) deal honestly, fairly and in good faith; and (c) disclose all facts known to the agent materially affecting the value or desirability of property, except as otherwise provided by law.

Buyer's Agent

A buyer's agent is an agent who is engaged by a buyer to represent the buyer's interest. The buyer's agent does this by negotiating the purchase of a home at a price and on terms acceptable to the buyer. A buyer's agent has, without limitation, the following fiduciary duties to the buyer: reasonable care, undivided loyalty, confidentiality, full disclosure, obedience and duty to account. A buyer's agent does not represent the interest of the seller. The obligations of a buyer's agent are also subject to any specific provisions set forth in an agreement between the agent and the buyer. In dealings with the seller, a buyer's agent should (a) exercise reasonable skill and care in performance of the

agent's duties; (b) deal honestly, fairly and in good faith; and (c) disclose all facts known to the agent materially affecting the buyer's ability and/or willingness to perform a contract to acquire seller's property that are not inconsistent with the agent's fiduciary duties to the buyer.

Broker's Agents

A broker's agent is an agent that cooperates or is engaged by a listing agent or a buyer's agent (but does not work for the same firm as the listing agent or buyer's agent) to assist the listing agent or buyer's agent in locating a property to sell or buy, respectively, for the listing agent's seller or the buyer agent's buyer. The broker's agent does not have a direct relationship with the buyer or seller and the buyer or seller cannot provide instructions or direction directly to the broker's agent. The buyer and the seller therefore do not have vicarious liability for the acts of the broker's agent. The listing agent or buyer's agent do provide direction and instruction to the broker's agent and therefore the listing agent or buyer's agent will have liability for the acts of the broker's agent.

Dual Agent

A real estate broker may represent both the buyer and the seller if both the buyer and seller give their informed consent in writing. In such a dual agency situation, the agent will not be able to provide the full range of fiduciary duties to the buyer and seller. The obligations of an agent are also subject to any specific provisions set forth in an agreement between the agent, and the buyer and seller. An agent acting as a dual agent must explain carefully to both the buyer and seller that the agent is acting for the other party as well. The agent should also explain the possible effects of dual representation, including that by consenting to the dual agency relationship the buyer and seller are giving up their right to undivided loyalty. A buyer or seller should carefully consider the possible consequences of a dual agency relationship before agreeing to such representation. A seller or buyer may provide advance informed consent to dual agency by indicating the same on this form.

Dual Agent with Designated Sales Agents

If the buyer and seller provide their informed consent in writing, the principals and the real estate broker who represents both parties as a dual agent may designate a sales agent to represent the buyer and another sales agent to represent the seller. A sales agent works under the supervision of the real estate broker. With the informed consent of the buyer and the seller in writing, the designated sales agent for the buyer will function as the buyer's agent representing the interests of and advocating on behalf of the buyer and the designated sales agent for the seller will



Division of Licensing Services

New York State
Department of State, Division of Licensing Services
(518) 474-4429
www.dos.ny.gov

New York State
Division of Consumer Rights
(888) 392-3644

New York State Housing and Anti-Discrimination Disclosure Form

Federal, State and local Fair Housing Laws provide comprehensive protections from discrimination in housing. It is unlawful for any property owner, landlord, property manager or other person who sells, rents or leases housing, to discriminate based on certain protected characteristics, which include, but are not limited to **race, creed, color, national origin, sexual orientation, gender identity or expression, military status, sex, age, disability, marital status, lawful source of income or familial status**. Real estate professionals must also comply with all Fair Housing Laws.

Real estate brokers and real estate salespersons, and their employees and agents violate the Law if they:

- Discriminate based on any protected characteristic when negotiating a sale, rental or lease, including representing that a property is not available when it is available.
- Negotiate discriminatory terms of sale, rental or lease, such as stating a different price because of race, national origin or other protected characteristic.
- Discriminate based on any protected characteristic because it is the preference of a seller or landlord.
- Discriminate by “steering” which occurs when a real estate professional guides prospective buyers or renters towards or away from certain neighborhoods, locations or buildings, based on any protected characteristic.
- Discriminate by “blockbusting” which occurs when a real estate professional represents that a change has occurred or may occur in future in the composition of a block, neighborhood or area, with respect to any protected characteristics, and that the change will lead to undesirable consequences for that area, such as lower property values, increase in crime, or decline in the quality of schools.
- Discriminate by pressuring a client or employee to violate the Law.
- Express any discrimination because of any protected characteristic by any statement, publication, advertisement, application, inquiry or any Fair Housing Law record.

YOU HAVE THE RIGHT TO FILE A COMPLAINT

If you believe you have been the victim of housing discrimination you should file a complaint with the New York State Division of Human Rights (DHR). Complaints may be filed by:

- Downloading a complaint form from the DHR website: www.dhr.ny.gov;
- Stop by a DHR office in person, or contact one of the Division’s offices, by telephone or by mail, to obtain a complaint form and/or other assistance in filing a complaint. A list of office locations is available online at: <https://dhr.ny.gov/contact-us>, and the Fair Housing HOTLINE at (844)-862-8703.

You may also file a complaint with the NYS Department of State, Division of Licensing Services. Complaints may be filed by:

- Downloading a complaint form from the Department of State’s website
https://www.dos.ny.gov/licensing/complaint_links.html
- Stop by a Department’s office in person, or contact one of the Department’s offices, by telephone or by mail, to obtain a complaint form.
- Call the Department at (518) 474-4429.

There is no fee charged to you for these services. It is unlawful for anyone to retaliate against you for filing a complaint.



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New York State Housing and Anti-Discrimination Disclosure Form

For more information on Fair Housing Act rights and responsibilities please visit
<https://dhr.ny.gov/fairhousing> and <https://www.dos.ny.gov/licensing/fairhousing.html>.

This form was provided to me by Lynette Wilson (print name of Real Estate Salesperson/
Broker) of L Wilson Realty (print name of Real Estate company, firm or brokerage)

(I)(We) _____

(Buyer/Tenant/Seller/Landlord) acknowledge receipt of a copy of this disclosure form:

Buyer/Tenant/Seller/Landlord Signature  John Alessio Date: 12/29/25

Buyer/Tenant/Seller/Landlord Signature _____ Date: _____

Real Estate broker and real estate salespersons are required by New York State law to provide you with this Disclosure.